

Council Meeting
July 10, 2019
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The Claremont City Council held a meeting on Wednesday, July 10, 2019, in the Council Chambers of City Hall.

The meeting was called to order by Mayor Lovett at 5:30 p.m.

Members of the Council present were:

At-Large Councilor Claire Lessard
Ward I Councilor Andrew O'Hearne
Ward III Councilor Jonathan Stone
Assistant Mayor Allen Damren
Mayor Charlene Lovett
At-Large Councilor Abigail Kier
At-Large Councilor Nicholas Koloski
Ward II Councilor Scott Pope

Also present:

John MacLean, Interim City Manager
Mary Walter, Finance Director

NEW BUSINESS

Mr. MacLean asked to move up the discussion of the Opera House Roof Repair to the beginning of the meeting.

A motion was made by Mr. O'Hearne and seconded by Mr. Stone to suspend Council Rules.

Roll call vote:

Lessard - yes

O'Hearne - yes

Stone - yes

Damren - yes

Kier - yes

Koloski - abstain

Pope - yes

Lovett - yes

Motion carried 7-0, 1 abstain.

Mr. Koloski abstained because his landlord does business with Melanson Company, Inc. At 5:31 p.m. he took a seat in the audience.

Opera House Roof Repair

Mr. MacLean explained the roof over the Opera House is leaking. It is a difficult project. The City called on Melanson Company, Inc. as they have worked with the City before. He said there is another company, Dayco, but they cannot add this into their schedule in the near future. Melanson is able to put this on their schedule in October. He said a description of the project was included in the packet.

Keith Hanatow, Melanson Company, Inc., said this is a tricky roof; it has several drains; there is an older precast wall cap around the perimeter of roof. They are proposing to keep the roof system in place and cover it with a half-inch high density cover board. The manufacturer offers a 25-year labor and material warranty. There are alternatives: copper which is expensive or continue filling the cracks, etc. While working on the roof, they may have to have traffic re-routed around the work area.

Mr. MacLean said the airhandling units will be looked at to see if the compressors can be switched out instead of replacing the units. Mr. Hanatow said that doing repairs on the airhandling units won't compromise the roof system after it is put in place. Mr. MacLean said the copper capping of the stone coping is part of the base bid of \$128,200. It does not include the additional copper. There is money in the budget to cover this including encumbrances for the roof and the \$17,000 that was going to be used to replace Council Chambers flooring.

Mr. Hanatow said they would start at the end of October and be finished by December.

A motion was made by Mr. Pope and seconded by Ms. Kier to waive the purchasing policy for the roof repairs and authorize the City Manager to execute all documents and move forward with the project as described.

Roll call vote:

Lessard - yes

O'Hearne - no

Stone - no

Damren - yes

Kier - yes

Koloski - abstain

Pope - yes

Lovett - yes

Motion carried 5-2, 1 abstain.

At 5:43 p.m. Mr. Koloski returned to Council table.

Mr. MacLean said the City has applied for an LCHIP (Land and Community Heritage Investment Program) grant which would do the remaining portion of the roof.

Interview and Selection of Candidate to Fill Vacant At-Large Councilor Seat

Mr. Stone said Jeremy Herrell withdrew his application due to time constraints. Mayor Lovett said Chris Havey withdrew his application due to a death in the family.

Mayor Lovett reviewed the interview process.

INTERVIEW PROCESS FOR COUNCIL SEAT VACANCY

1. Mayor Lovett provides an overview to the applicants regarding the interview process as outlined below and approved by the Council on June 26. With the exception of the first applicant to be interviewed, the remaining applicants will be excused until called. If using the alphabetical order, the applicants will be interviewed in the following order:
 - A. Jim Contois
 - B. Kristin Kenniston
 - C. Patrick Lozito
 - D. Deb Matteau
2. Each applicant will be given two minutes for an opening statement, and two minutes for a closing statement. Each applicant will be asked to answer the following questions:
 - A. How have you personally invested yourself in Claremont?
 - B. What motivates you to serve as a City Councilor?
 - C. What do you feel is one of the City's biggest challenges?
 - D. What committees do you see yourself participating in as a Councilor, and why?

Each applicant will be given two minutes to answer each of the above questions. Councilors will not be given an opportunity to redirect.

3. After the interviews are completed, each member of the Council will cast a vote. If there is a clear winner during the first round, then no further voting is necessary. If there is not a clear winner, a second round of voting will be conducted.
4. The applicant with the most votes, will be sworn in by Ms. Melcher. The new Councilor will then take his/her seat and the meeting will resume.

James Contois made his opening statement. He clarified that he had 26 years of federal service with the Department of the Army as a civilian, not as a member of the Army as was reported in the newspaper. He read from his letter of interest. He has been a case manager for homeless services; has been a Tracker with Juvenile Probation; has been active in advocating against the Wheelabrator incinerator; is part of the Racial Healing Working Group; and is a board member of Working on Waste, advocating for recycling. He believes Claremont is a city on the move and he has been working against bringing the Construction and Demolition (C&D) Debris Project into Claremont.

A. How have you personally invested yourself in Claremont?

Mr. Contois said he is currently working against the C&D open air facility. It is within 1,000 yards of Maple Avenue School. This is not the right time for Claremont to have this project. He has been active against Wheelabrator's re-permitting process due to air quality. He is active in the Grace River Church. He worked with Juvenile Probation as a contract worker, and he worked at the homeless shelter.

B. What motivates you to serve as a City Councilor?

Mr. Contois said he often speaks about voter apathy. He wants the C&D facility to not open and for Wheelabrator to not operate again. Also, social justice is near and dear to him.

C. What do you feel is one of the City's biggest challenges?

Mr. Contois said the biggest challenge is that the C&D facility is near a school. The second is racism and social justice. He talked about the Pride event and that his concern is that some Claremont Middle School (CMS) students have felt unsafe going to the restroom due to bullying. Racism, social justice, homelessness, and how to dispose of waste are important issues.

D. What committees do you see yourself participating in as a Councilor, and why?

Mr. Contois would like to be on the Claremont Planning Board. He has a minor degree in criminal justice and he would like to be on the Police Commission.

Mr. Contois gave his closing statement. His opening statement and answers to the questions said it all. He and his wife came to Claremont because of an ailing family member. He's become involved in Claremont and he wants to stay involved. The City Council has a lot of responsibility for the direction of the City and he would like to be a part of that.

Kristin Kenniston made her opening statement. She is a long-time resident of Claremont. She has spent 15 years working with the public sector; she works in Lebanon in the Clerk's office as the Deputy City Clerk. She said that people should be treated with kindness. She makes sure she is professional and approachable.

A. How have you personally invested yourself in Claremont?

Ms. Kenniston said that she and her husband are property owners. Her daughter is 15 years old and attends Stevens High School. There is a requirement for students to perform community service in order to graduate. Her daughter has met that requirement and continues to volunteer. Ms. Kenniston serves on a number of boards (i.e. City Manager Search Committee, Historic District Commission (HDC), City Center Steering Committee, School Board).

B. What motivates you to serve as a City Councilor?

While working on the City Manager Search Committee, she found the work fulfilling and wants to take her service in the community to another level.

C. What do you feel is one of the City's biggest challenges?

The tax rate is the obvious answer. The City needs to work on the trust of its citizens. The website needs work. She would like to have a Citizens Academy and to invite citizens in to see what is done and why. That helps with trust of the public in Lebanon. It also, helps with volunteers for boards.

D. What committees do you see yourself participating in as a Councilor, and why?

Ms. Kenniston is currently on the HDC and she would like to remain on that Commission. She is interested in the Policy Committee and is willing to serve on other boards.

Ms. Kenniston said her husband is with the Claremont Fire Department. She understands that during the budget discussion, she will have to recuse herself. With her job, she communicates with City Clerk Gwen Melcher as a clerk and she understands that she cannot communicate with Ms. Melcher as a Councilor.

Patrick Lozito made his opening statement. He said he is interested in the truth and facts. His approach to jobs is to determine the task and then evaluate what the options are. As a Councilor, he would be open and honest. He has chosen to live in Claremont.

A. How have you personally invested yourself in Claremont?

Mr. Lozito said he owns a home here and he wants to live in Claremont.

B. What motivates you to serve as a City Councilor?

It is a civic duty. He wants to contribute to Claremont.

C. What do you feel is one of the City's biggest challenges?

Bills to pay and where does the money come from. There are hard decisions that have to be made. There is only so much the Claremont population can sustain.

D. What committees do you see yourself participating in as a Councilor, and why?

Mr. Lozito would want to know more about the committees. He doesn't have enough knowledge at this time.

Mr. Lozito gave his closing statement. If appointed, he assures that he has no private interests. His interest is to serve the people of Claremont in a way that is fair and equitable.

Debora Matteau made her opening statement. She has lived in Claremont most of her adult life. She owns her own home and has raised two children here. She worked in City Hall for 13 years. She spent 14 years on a condo board and has served on several boards in the City.

A. How have you personally invested yourself in Claremont?

Ms. Matteau said she was on the Claremont School Board when the Claremont lawsuit was brought about. She has served on the City Manager Search Committee and the Master Plan Steering Committee. She owns a home here and is a big cheerleader for Claremont.

B. What motivates you to serve as a City Councilor?

Claremont is her home; it is a great place; and has untapped potential. Claremont can do a better job of selling itself to others and to its residents. She wants the people of Claremont to look at the Council as being on their side.

C. What do you feel is one of the City's biggest challenges?

Finding and retaining a qualified, experienced City Manager will go a long way for other challenges. Other challenges are tax rate stabilization; attract and retain young people here; provide workforce housing. The City needs to try to reduce its tax burden.

D. What committees do you see yourself participating in as a Councilor, and why?

Ms. Matteau has worked for 23 years for Sulco Corp. and she would enjoy being on the Finance Committee. Claremont needs to invest in its infrastructure (roads, water, sewer, etc.). Claremont is an old city and some of its infrastructure is old as well. Also, she would like to be on the Policy Committee.

Ms. Matteau made her closing statement. She would like to give back to the community by being on the Council. She is aware of the time commitments that is required.

Councilors took time to consider the applicants. They hoped that all the candidates would place their names on the upcoming ballot.

Councilors announced their votes:

Mr. Pope – Debora Matteau

Mr. Koloski – Kristin Kenniston

Ms. Kier – Kristin Kenniston

Mr. Damren – Debora Matteau

Mr. Stone – Kristin Kenniston

Mr. O’Hearne – Kristin Kenniston

Ms. Lessard – Debora Matteau

Mayor Lovett – Kristin Kenniston

The vote was 5 for Kristin Kenniston and 3 for Debora Matteau. Ms. Kenniston was selected.

Swearing In of At-Large Councilor

City Clerk Gwen Melcher swore in Kristin Kenniston to the vacant At-Large Council seat.

At 6:36 p.m. Ms. Kenniston joined the rest of the Council at the table.

AGENDA CHANGES

Mayor Lovett said there were no other changes.

REPORT OF THE SECRETARY

A motion was made by Ms. Kier and seconded by Mr. Damren to accept the minutes of the May 22, 2019, City Council meeting.

Voice vote: motion carried 9-0.

A motion was made by Ms. Lessard and seconded by Ms. Kier to accept the minutes of the June 12, 2019, City Council meeting, as amended.

Mayor Lovett requested the following changes:

- Page 2, change proclamation for Peg Watson to Letter of Appreciation.
- Page 7, paragraph above Resolution 2020-2, the amount should be over \$333,000
- Future Agenda Items, second paragraph, change it so it reads they must have a replacement by the second regularly scheduled Council meeting after the vacancy has occurred.

Voice vote: motion carried 9-0.

A motion was made by Mr. O’Hearne and seconded by Mr. Stone to accept the minutes of the June 19, 2019, City Council meeting, as amended.

Mayor Lovett said page 1, under Mayor’s Notes, it should read that the proposed state budget increase is 8.25%; all believe that is too high. They will deliberate further on what the recommended increase should be.

Voice vote: motion carried 9-0.

A motion was made by Ms. Kier and seconded by Mr. Stone to accept the minutes of the June 26, 2019, City Council meeting, as amended.

Mr. Damren abstained as he was not at that meeting.

Mayor Lovett said on page 1, under Mayor’s Notes, it should read over \$333,000, and the school funding would be approximately \$1.2 million the first year and over \$4 million in the second year of the biennium.

Voice vote: motion carried 8-0, 1 abstain (Mr. Damren).

MAYOR’S NOTES

- Mayor Lovett said she called the Governor and asked him to sign the state budget because there was funding in it that Claremont needs. She asked if he doesn’t sign the budget, what is the plan, as Claremont can’t afford to wait. The school district starts its budget process in the fall and if nothing changes, there will be a continued decrease in the stabilization grant. The budget has approximately \$333,000 each year of the biennium for unrestricted municipal aid, \$111,000 each year for 4 years for wastewater projects, \$1.2 million and over \$4 million in each year of the biennium for school funding. The legislature passed a continuing resolution for 90 days.
- Mayor Lovett said the July 4th Celebration was great. Special thanks to Parks and Recreation Department and McGee Toyota. Parks & Recreation collected approximately \$1,700 for the fireworks display.
- Properties are selling quickly in Claremont. Janet Gibson, Registrar of Deeds, said that real estate is really moving. Buyers are coming from Lebanon.
- Red River CEO, Jeff Sessions passed away and she sent thoughts to Red River as they go through this difficult time.

CITY MANAGER’S REPORT

- Regarding electricity purchasing, the City has gotten its best rate in 10 years. The cost avoidance over 30 months is approximately \$40,000. Patriot Energy is the broker.
- Police Officer Michael Puksta has been selected to play on the police team for the CHAD (Children’s Hospital at Dartmouth-Hitchcock) baseball game.
- Sean Glasscock, Building Inspector, will be leaving the City to take another job.

- Certifications:
 - Vic St. Pierre - Operator Training
 - Chris Bergeron, Kelly Dole, and Richard Robbins – Confined Space Training
 - Daniel Benware, James Stone, and Chris Bergeron – Mobile Read System
 - Dean Hooper, Ken Hamilton, and Chris Bergeron – Underground Safety

Mr. Koloski noted in the Fire Department report that Lt. Jeff Matthews had tendered his resignation and would be going to Manchester. Mr. MacLean said the department is starting the process to backfill that position.

APPOINTMENT TO BOARDS AND COMMITTEES

None

CITIZEN'S FORUM

Norm Blouin, Ward 3, said regarding the roof, that he thinks circumventing the bid process is wrong and that there was time to go out for a bid. Regarding the Fire Department's interest in ponds and dry hydrants, he said they didn't know he had ponds in his area. He said there needs to be an ordinance for tiny houses. There is a tiny house on his road. That person brought in loads of gravel for the driveway and has said he'll bring in five tiny houses. Mr. Blouin asked how tiny houses are taxed. To Scott Pope, he said as far as cable goes, it will never come to his area. He noted there is more than one power company around. People in his area are part of the co-op.

Jim Contois, Ward 2, sent an email to Councilors regarding the Construction and Demolition (C&D) Debris Project. It is expected there will be 500 tons brought to the facility per day which is 2.5 times more than Wheelabrator. He is a part of a citizen group that is opposed to this facility. He said John and Jan Lambert are opposed to this facility and its impact on the Junction. He said they gave permission to use their names. This facility represents a lead hazard. He said the Master Plan reads that the City wants to improve its standard of living. This facility will be an open slab and there will be dust. He said there have been assurances the trucks will not travel on Maple Avenue, but who will monitor that. He said there is a wetland in the area. He said the company is talking about having 6-8 jobs, but how does that compare to the health of our children.

Rebecca Mackenzie, Ward 2, said in 2018, the City was given an award for lead removal work in Claremont. It indicates that Claremont cares how lead is taken care of. This C&D facility would enhance the possibility there would be problems of lead exposure. Also, she thanked the 20 people who came to the reading of Frederick Douglas. On Friday, July 12, there will be an opportunity to gather on the lawn of the Trinity Church to commemorate the Lights for Liberty, how our nation treats immigrants.

OLD BUSINESS

City Manager Search Update

Mr. Damren said there were five individuals the City Manager Search Committee was interested in speaking to, but one has dropped out, and one more may drop out. Due to weather and business-related issues, the interviews for two on Saturday have been cancelled. The other interviews will be on Thursday evening. They will reschedule the Saturday interviews as soon as possible.

Ms. Kier thanked the Committee for its work. She stated she was upset that there were no female candidates being interviewed.

Ms. Kenniston said she originally started on the Committee as a citizen member and now she is a Councilor, so she asked how to proceed.

A motion was made by Ms. Kier and seconded by Mr. Damren to allow Kristin Kenniston to keep her seat on the City Manager Search Committee since we are so close to the end of the process.

Councilors had a discussion whether or not Ms. Kenniston should stay on the Committee.

A motion was made by Mr. Damren and seconded by Mr. Stone to move the question.

Voice vote: motion carried 7-1 with Mr. O'Hearne voting no, and 1 abstain (Ms. Kenniston).

Roll call vote on the motion:

Lessard - yes

O'Hearne - no

Stone - yes

Damren - yes

Kenniston - abstain

Kier - yes

Koloski - no

Pope - yes

Lovett - yes

Motion carried: 6-2, with 1 abstain.

There was a discussion about Council approving funds for travel and lodging for the candidates. Messrs. Koloski and O'Hearne do not remember approving the funding.

Mr. MacLean said there may be \$5,000 from lapsed salaries that could be used.

A motion was made by Mr. Damren and seconded by Ms. Kier that the Council authorize up to \$5,000 for travel, lodging, and meals for City Manager candidates.

Voice vote: motion carried 7-2 with Mr. Koloski and Mr. O’Hearne voting no.

Mr. Koloski asked about showing the candidates around the community. Mr. Damren said that is on the Committee’s agenda to be discussed.

NEW BUSINESS (Continued)

Real Estate – 56 Opera House Square, Map 120, Lot 51

Nancy Merrill, Planning and Development Director, said the next three items relate to the same project. Three members of the Claremont Development Authority were present; Andy LaFreniere, Tom Rock and Mike Satzow. The building has been vacant since 1993. It has been shown to perspective parties in the past. The return on investment to bring the building back to a usable space is tough because there will only be about 6,000 sf of usable space when it is done. The Claremont Development Authority (CDA) is a board that was created by the Council. It has the authority to own, sell and lease real estate for purposes of economic development and that is what this is about. Melissa Richmond’s group, West Claremont Center for Music and the Arts (WCCMA), has been given a very large tax credit proposal and has been approved for a USDA loan. The second part of this is to ask the City to apply for a CDBG which will put more funds in the building rehab. The third item is Jane’s Trust which is a philanthropic trust out of Boston. They fund capital projects, and they fund the arts. The application will be done by WCCMA in collaboration with the CDA, if the building is transferred. The City received brownfield assessment funding for the building from the Regional Planning Commission. The City approved \$70,000 for asbestos remediation. Putting this together has taken almost two years. The elevator is shared between this building and the Farwell Block. The City will apply for the CDBG; the subrecipient will be WCCMA; and the CDA will administer it. The CDA will pay full taxes on the property and after the work is done, the property will be reassessed.

A motion was made by Mr. Koloski and seconded by Mr. Damren to authorize the City Manager or his designees to negotiate, execute and undertake all such actions as may be required to convey City-owned land located at Tax Map 120, Lot 51 (56 Opera House Square) to the Claremont Development Authority for \$1.00, and to accept all proceeds related thereto for deposit into the applicable City account.

Voice vote: motion carried 9-0.

CDBG Public Facilities Grant Application for West Claremont Center for Music and Art in Claremont

Information packets for the CDBG public hearing were available for the public.

Mr. Damren read the CDBG script:

Community Development Block Grant funds are available to municipalities through the NH Community Development Finance Authority. Up to \$500,000 annually is available on a competitive basis for public facility and housing projects, up to \$500,000 for economic development projects and up to \$350,000 for emergency activities. All projects must directly benefit low and moderate income persons. Up to \$12,000 per study is available for Planning Grants.

A proposed application to the Community Development Finance Authority for up to \$500,000 in Community Development Block Grant funds for the expansion of the West Claremont Center for Music and Art in Claremont. The expansion will include building reconstruction at 56 Opera House Square to include utilities, roof, and windows, performance space, practice rooms and studios.

This project conforms with Claremont Housing and Community Development Plan's Goals of: Develop the downtown into an economically vibrant center. Promote the downtown as the community's center and focal point and encourage an effective downtown. Ensure that the design in the downtown compliments the existing cultural, natural, historic and transportation resources. Promote economic development in the downtown. Undertake redevelopment efforts such as the renovation of the Brown Block. Identify deteriorated buildings and areas of blight and develop a plan and programs to correct the situation. Develop a plan and program for the improvement and upgrade of the City's infrastructure. (Short-term and Long-term goal).

Mayor Lovett opened the public hearing and asked if anyone from the public wished to speak. No one did. She closed the public hearing.

Residential Antidisplacement and Relocation Assistance Plan

Although this project does not involve any displacement or relocation of persons (or businesses), if the City were to undertake a CDBG project which involved displacement or relocation they would follow this plan. The plan outlines the measures they would take to find comparable, suitable housing for persons (or businesses) displaced or relocated.

Mr. Pope read the Displacement and Relocation Certification – City of Claremont Residential Antidisplacement and Relocation Assistance Plan.

Mayor Lovett opened the public hearing and asked if anyone from the public wished to speak. No one did. She closed the public hearing.

A motion was made by Mr. Pope and seconded by Ms. Kier to adopt the Antidisplacement and Relocation Assistance plan.

Voice vote: motion carried 9-0.

A motion was made by Ms. Kier and seconded by Mr. Damren to approve the submittal of the application and to authorize the City Manager to sign and submit the application, and upon approval of the CDBG application, authorize the City Manager to execute any documents which may be necessary to effectuate the CDBG contract and any amendments thereto.

Voice vote: motion carried 9-0.

Application for Jane's Trust

Ms. Merrill said the motion shows that the Council supports the application.

A motion was made by Mr. Pope and seconded by Mr. Koloski to authorize the City Manager or his designee to execute and perform all actions as may be required on behalf of the City of Claremont to support an application by the West Claremont Center for Music & Art to Jane's Trust for a collaborative renovation project at 56 Opera House Square with the Claremont Development Authority.

Voice vote: motion carried 9-0.

Melissa Richmond, WCCMA, thanked the Council for its support. The vision is to create a beautifully vibrant place for music. They plan to have a kitchen in the building and to incorporate a culinary incubator into the space. They have received a \$400,000 tax credit from CDFA. They will work on a capital campaign fundraiser. The fundraising goal for the project is \$2 million which will cover the fit-up, construction, and longevity for the operation.

Ms. Merrill said they should hear if they are approved for the grant in August.

Ms. Richmond said certain areas of the facility will be membership based and there will be event rentals for wedding receptions, etc.

Norm Blouin, Ward 3, asked about economic or environmental benefits for Claremont.

Ms. Richmond said for every dollar spent in the venue, more than that will be spent in the local economy. This will bring jobs in the arts.

Ms. Kenniston asked about space for local artists to display. Ms. Richmond said there would be art exhibitions.

Mike Satzow, Ward 2 resident and CDA member, said this is a tipping point for Claremont. Claremont is on its way to becoming an alive and vibrant community.

Resolution 2020-6 Application for Clean Water SRF WWTP Aeration Blower – Public Hearing

WHEREAS, the City operates the Wastewater Treatment Plant at 338 Plains Road and wishes to increase the energy efficiency of the plant; and

WHEREAS, the City wishes to also comply with its recent energy audit as well as the provisions the New Hampshire Department of Environmental Services energy grant; and

WHEREAS, in order to become more energy efficient, the City wishes to replace its aging 125 HP aeration blower at the Wastewater Treatment Plant (the Project) and thus reduce the need for energy; and

WHEREAS, 65% of the electric use at the Wastewater Treatment Plant is for aeration blowers; and

WHEREAS, on August 22, 2018, the Claremont City Council unanimously approved Resolution 2019-7 to apply for a loan from the State Revolving Fund (SRF) in the amount of \$172,750 in accordance with New Hampshire RSA 486:14 and Code of Administrative Rules Chapter Env Wq 500

NOW, THEREFORE, BE IT RESOLVED by the City Council to authorize the city manager, or his designees, to take such actions as may be necessary to file an additional application on behalf of the City for a loan from the State Revolving Fund (SRF) in the amount of \$516,250 in accordance with New Hampshire RSA 486:14 and Code of Administration Rules Chapter Env Wq 500, thus making the total authorization of \$689,000; and

BE IT FURTHER RESOLVED that Eversource rebates for the project are also expected to reduce the final cost; and the New Hampshire Department of Environmental Services Energy Efficiency Implementation Program will provide 50% principle forgiveness on project costs up to \$400,000 and costs exceeding \$400,000 will be eligible for 15% principle forgiveness through the CWSRF program; and

BE IT FURTHER RESOLVED that the source of the loan repayment funds for the remaining amount not eligible for principle forgiveness will be moneys billed and collected, as user fees; and

BE IT FURTHER RESOLVED that the city treasurer, with the approval of the city manager, is authorized to borrow up to \$516,250 from the State Revolving Loan Fund (SRF) and to undertake all actions as may be required to accept and expend the funds to replace the 125 HP aeration blower at the Wastewater Treatment Plant; and

BE IT FURTHER RESOLVED to raise and appropriate the amount of \$516,250 for the project, with up to \$516,250 to come from the proceeds of said SRF loan (to have no impact on the tax rate); and

BE IT FURTHER RESOLVED that the city manager, or his designees, are hereby authorized to undertake all actions and execute all documents, including the loan agreement, related to this resolution, and the city treasurer is hereby authorized to act on behalf of the Sewer Enterprise Fund by signing monetary disbursements. *(2/3 Vote Required)*

A motion was made by Ms. Kenniston and seconded by Ms. Kier to adopt Resolution 2020-6 Application for Clean Water SRF WWTP Aeration Blower.

Ms. Kenniston read the resolution into the record.

Vic St. Pierre, Public Works Director, said there are four blowers, which are extremely loud. They will keep two for backup and purchase two new ones. The new ones will save the same amount of energy that the solar field creates, 176,000 kW-h per year. A lot of the change was driven by new regulations and technology. The replacement cost is \$689,000; DES Grant, Eversource Rebate and forgiveness of the loan is \$323,350; cost of the project is \$365,650. These machines are expected to last 20 years. Expected savings of \$1.1 million for the life of the project with this change. He hopes to go out to bid by November with completion in July 2020.

Mayor Lovett opened the public hearing. No one spoke. She closed it.

Roll call vote:

Lessard - yes

O'Hearne - yes

Stone - yes

Damren - yes

Kenniston - yes

Kier - yes

Koloski - yes

Pope - yes

Lovett - yes

Motion carried 9-0.

Ordinance 568 Amending the Non-Union Employee Pay Schedule – First Reading

The purpose of this proposed change is to amend Attachment C to the Non-Union Employee Classification Plan by amending and readopting the salary schedule for non-union City employees.

Enactment of this Ordinance will amend Attachment C of the Non-Union Employee Classification Plan. This change was requested by the City Administration and recommended by the Personnel Advisory Board.

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Mayor Lovett asked to suspend Council Rules because what was included in the packet was the proposed ordinance. A copy of the current ordinance with the red-lined changes was sent to the Council later. The explanation of proposed action was not included with the ordinance.

Mr. O'Hearne didn't think the ordinance should be discussed tonight. Council Rule 38 was not followed: current ordinance and changes, attorney's certification, City Manager's explanation, and Personnel Advisory Board's (PAB) recommendation were not included in the packet. Because of these items, he thinks this should be moved to the next meeting. He doesn't think Council should suspend its Rules to discuss this.

Mr. MacLean said this has been brought up numerous times under the City Manager's Report. This is not about adjusting a particular employee's salary. This is to adjust all the brackets in the Merit Plan. This small adjustment is meant to placemark the need to adjust salaries. City Staff met with the PAB; he didn't know why the minutes were not in the packet.

A motion was made by Mr. Damren and seconded by Mr. Pope to suspend Council Rules to allow this to be discussed.

There was a discussion about having rules, but not following them; needing to have flexibility because the City Manager is only here 3 days a week; and a statement that very few Merit Plan employees are at the maximum except directors.

Roll call vote:

Lessard - yes

O'Hearne - no

Stone - no

Damren - yes

Kenniston - no

Kier - no

Koloski - no

Pope - no

Lovett - yes

Motion failed 3-6.

This will be moved to the next meeting.

Councilors agreed, again, to have only one meeting in August, August 14.

COMMITTEE REPORTS

None

FUTURE AGENDA ITEMS AND DIRECTIVES

Mr. Stone would like to discuss Council Rule 33, Procedure in Absence of Rules, where Council voted in the absence of rules, to follow Robert's Rules.

Mr. Koloski asked regarding Ordinance 568 that PAB minutes and other information that was asked for be included in the next packet.

Mr. Koloski said audience members have a hard time hearing Councilors; he asked to discuss directing the City Manager to look into hearing devices with money to come from the Council line item. Ms. Walter said she could talk to Chris Burgess about getting different microphones for each Councilor. Mr. Koloski would like to get listening devices instead of relying on additional microphones. Ms. Walter asked to wait until the Council was done spending travel money.

Ms. Kenniston asked to discuss her position on the Historic District Commission now that she is a Councilor.

CONSULTATION WITH LEGAL COUNSEL

None

ADJOURNMENT

At 9:07 p.m., a motion was made by Ms. Kier and seconded by Mr. Damren to adjourn.

Voice vote: motion carried 9-0.

Respectfully Submitted,

Dorée M. Russell
Clerk to the Council